IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

and

CHRISTOPHER HANSON,

Respondent/Husband.

_____/

Case No.: 24-DR-001150

Division: D

WIFE'S MOTION FOR APPOINTMENT OF GUARDIAN AD LITEM

Petitioner, Sarah Hanson, by and through the undersigned attorney, files this Motion for Appointment of Guardian Ad Litem. As grounds therefore, Wife states as follows:

1. The parties to this action are Petitioner, Sarah Hanson ("**Wife**") and Respondent, Christopher Hanson ("**Husband**"), collectively, (the "**Parties**").
2. Pending before the Court is Wife's Amended Petition for Dissolution of Marriage with Minor Children and for Other Related Relief ("**Wife's Amended Petition**") **[DIN 42].**
3. There are two (2) minor children who were born to the Parties during the marriage, to wit: H.G.H., a female, born [redacted] 2017, at Tampa, Florida; and H.G.H., a female, born [redacted] 2019, at Tampa, Florida (the "**Children**").
4. Section 61.401, Florida Statutes, provides in relevant part that "[i]n an action for … the creation, approval, or modification of a parenting plan, if the court finds it is in the best interest of the child, the court may appoint a guardian ad litem to act as next friend of the child, investigator or evaluator, not as attorney or advocate."
5. Wife acknowledges that section 61.13(2)(c)(1) creates a rebuttable presumption that equal time-sharing of minor children is in the best interests of the minor children. However, based on the facts and circumstances that are unique to this family, Wife asserts that equal time-

sharing is not in the best interests of the Children. Wife asserts that it is in the best interests of the Children for the Court to establish a Parenting Plan awarding Wife majority time-sharing with the Children on a temporary and permanent basis. Furthermore, Wife asserts that it is in the best interests of the Children for the Parties to have shared parental responsibility of the Children with Wife having ultimate decision-making authority regarding education, healthcare, childcare, extracurricular activities, and other matters which are unique to this family.

6. On May 16, 2024, Husband filed a Response to Motion to Compel Payments and Motion to Compel Evidence of Marital Assets and Financial Information [**DIN 22**] wherein Husband stated:

   a. Husband has "[redacted]" (¶ 21).

   b. Husband "is [redacted]" (¶ 22).

   c. Husband "will [redacted]." (¶ 22).

   d. Husband acknowledged that he "momentarily refused to provide payment for [the Children's] expenses, certainly in part out of anger and frustration…" (Emphasis added).

7. The Parties are in substantial disagreement as to what is in the best interests of the Children.

8. It is in the best interests of the Children for the Court to appoint a qualified professional to serve as a guardian ad litem in this matter.

9. The cost of the guardian ad litem should be paid solely by Husband subject to reallocation

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at the final hearing in this matter.

WHEREFORE, the Wife, Sarah Hanson, respectfully requests that this Honorable Court enter an Order awarding the following relief:

A. Appoint a qualified professional as the guardian ad litem to act as next friend of the Children, investigator, and evaluator, pursuant to section 61.401, Florida Statutes;

B. Require Husband to pay the cost of the guardian ad litem's services subject to reallocation at the final hearing in this matter; and

C. Grant any other relief that the Court finds to be necessary or appropriate in this matter.

Dated: December 13, 2024

Respectfully submitted,

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.
Fla. Bar No. 0115540
scott@davislawtampa.com
service@davislawtampa.com
TAMPA BAY FAMILY LAW & MEDIATION, P.A.
P.O. Box 118667
Tampa, FL 33679
(813) 251-6222 (telephone)
Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on December 13, 2024, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record.

/s/ Scott Paul Davis

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